By-Laws
Of
Wendwood Association, Inc.

Updated November 7, 2011

Mission Statement

The Wendwood Association, Inc. has as its purpose to provide safe, wholesome, family-centered swimming and other forms of recreation for all members. In addition the Association will provide a forum to enhance fellowship of residents and to keep our neighborhood beautiful and safe.

Article I
Membership Meetings

Section 1-Annual Meeting: The annual membership meeting of Wendwood Association, Inc., herein after referred to as the Association, shall be held any day of the second week of November at the time and place determined by the Board of Directors. {any day of the week of November in each year at the time and place determined by the Board of Directors. If that day is a legal holiday, the annual meeting shall be held on the next succeeding day not a legal holiday.} Notice of the membership meeting shall be in writing by email or any means acceptable {in writing} to all members at least 30 days prior thereto.

Section 2-Other Meetings: All special meetings of the members of the Association shall be held at the times and places determined by the Board of Directors. The time and place shall be stated in a notice or waiver of notice of each meeting and delivered to each member at least six (6) days prior to the special meeting. In addition, said notice shall state the business to be transacted at the special meeting. Meetings of the member shall be held whenever called by the President or Secretary, by a majority of the Directors or by 40% of the active members entitled to vote by written notice to the President or Board of directors.

Section 3-Quorum and Voting: At all meetings of the membership of the Associations, a majority of all active members in good standing must be present either in person or by written proxy to constitute a quorum. Less than a quorum may adjourn the meeting to set a time and place, no further notice of any adjourned meeting being required. A membership certificate shall entitle each active member of the Association to one (1) vote in person or by written proxy at any and all membership meetings.

Section 4-Conduct of Meetings: The President shall preside over all meetings of the membership. If the President is not present, the Vice-President shall preside. If none of the officers are present, a Chairman shall be elected by the meeting. The Secretary of the Association shall act a secretary of all meetings if present. If the secretary is not present, the chairman shall appoint a Secretary of the meeting. The Chairman of the meeting may appoint one or more inspectors of the election to determine the qualifications of voters, the validity of

proxies and results of ballots. Meetings are conducted using Robert's Rules of Order.

Article II
Board of Directors

Section 1-Number, Election, and Terms: The Board of Directors shall be elected at the annual meeting of the membership or at any special meeting held in lieu thereof. The number of Directors shall be nine (9), and their job of to manage the affairs of this Association. This number may be increased or decreased at any time by amendment to these by-laws. The Directors must be members of the Association. Only one (1) board member shall be permitted per member family. Associate members serving on the board at any time is limited to two (2). One person may hold any two offices except for the position of President whom may only hold one position.

The Directors shall hold office until removed or the next annual meeting of the membership or until their successors are elected. The members of the Board of Directors shall be elected by a majority vote of active members of the Association voting at the annual meeting in person or by written proxy. For purpose of continuity on the Board, five (5) of the nine (9) members shall be elected for two (2) year terms during even years and the remaining four (4) elected for one (1) year terms. Thereafter, all members shall be elected for two (2) terms during odd years.

Section 2-Removal and Vacancies: The membership of the Association at any meeting, by a vote of the members of a majority of all regular members having the right to vote may remove any Director and fill the vacancy. Any vacancy arising among the Board of Directors may be filled by the remaining Directors unless sooner filled by the membership at a special meeting.

Section 3-Meetings and Notices: Meetings of the Board of shall be at times fixed by resolution or upon call of the President, or upon call of a majority of the members of the board. Notice of any meeting not held at times set by resolution of the board shall be given to each Director at least 24 hours before the meeting at their residence or business address or by delivering such notice by telephoning or e-mailing it to them at least 24 hours before the meeting. Any such notice shall contain the time and the place of the meeting but need not contain the purpose of the meeting. Meetings may be without notice if all directors are present or those present waive notice before or after the meeting.

Section 4-Powers and Duties: The Board of Directors shall meet at regular meetings during the months of January, April, May, June, July, August, September and October of each year and at the discretion of the outgoing President in November or December following the annual meeting. Any special meeting of the Board of Directors may be called upon by written notice of the President or by any five (5) Directors. The time and place of the meeting shall be set accordingly. Five (5) or more Directors of the Board must be present for there to be a quorum, unless otherwise provided by these By-Laws. At any meeting of the Board, all decisions shall be by majority vote of the members of the Board

present and voting. Any Board of Director member who has un-excused absences form three (3) Board meetings for a year, or otherwise fails to perform their duties or responsibilities as a Director, shall be subject to dismissal by the Board of directors and said vacant office shall be occupied by another individual elected by the Board of Directors for the remainder of the term.

The Board of Directors shall be responsible for establishing terms and conditions as to membership in the Association not inconsistent with the articles of Incorporation and By-Laws herewith. In addition, the Board of Directors shall establish standards, criteria, geographical and other limitations governing membership eligibility, so long as not inconsistent to the Articles of Incorporation and the by-Laws herewith. The Board of directors shall have the final determination on acceptance or rejection of any membership application. The Board shall have the power and authority to hear all complaints, charges or grievances by the membership. The Board, by two-thirds majority vote, may recommend to the membership, which must be approved by three-fourths of the membership, to expel or suspend any member of the Association for any action or failure to act which is detrimental to the Association.

The Board shall have the power and Authority to determine annual dues of the membership. The Board shall at its discretion, establish an initiation fee.

Unless contrary to the articles of Incorporation and other bylaws herein, the Board shall have the power and authority to make, alter or amend the Association's rules and policies so long as they are not inconsistent with the purposes and objectives of the Association, and further, to provided, if necessary, reasonable penalties of violation of such rules and policies.

The Board shall be vested with the power and authority to contract for the purchase of services, material, and supplies in the name of the Association for whatever be reasonably required in the operation, management and maintenance of the Association, its property and assets. In addition, the Board shall have the power and authority to modify or discontinue any program or project of the Association, where in its discretion such action be necessary or expedient. Any expenditures to improvements on property of the Association in excess of three Thousand Dollars ($3,000) {One Thousand Dollars ($1000.00)} and relating to other than normal, expected operation, management and maintenance of the Association, must be approved in advance by the membership. The Board shall have the power and authority to, at anytime; employ one or more certified public accountants for any and all work relating to the Association.

The Board shall approve a budget for the operation, management, and maintenance of the Association which shall be prepared and submitted to the membership at least ten (10) days prior to its annual membership meeting. Said budget approved by the membership during the fiscal year of the Association may be altered, adjusted, or reallocated, providing the Board's approval is two-thirds present and voting; and further provided that such alteration, adjustment or reallocation in expenditures does not exceed the total expenditures permitted under the original budget or place the Association into an insolvent position. To exceed the total expenditures of the original budget by the above means

approval of a majority of the membership present and voting at a special meeting shall be required.

Article III
Committees

Section 1-Executive Committee: The Board of Directors may designate, by resolution adopted by a majority of all Directors, four (4) or more of the Directors to constitute Executive Committee. The Executive Committee, when the Board is not in session, may exercise all of the powers of the Directors except to approve an amendment of the articles of incorporation or a plan of merger or consolidation and may authorize the seal of the Association to be affixed as required The Executive Committee may make rules for the holding and conduct of meetings, the notice thereof required, and the keeping of its records.

Section 2-Standing Committees: The Board shall establish and appoint any committee that it deems necessary for the operation of the routine affairs of the Association. Standing and other Committees shall be composed of as many members as the Board may determine. Committee appointments may be for one (1) year or less at the discretion of the Board. No Committee shall have the right to obligate the Association in any way for any sum in excess of the specific budgeted amount established for it use for the current year and approved by the board. All Committees shall report on their activities to the Board whenever so requested and are at all times under the direct supervision and control of the Board, having such authority defined herein and as may be delegated to them by the Board.

Section 3-Nominating Committee: The Nominating Committee shall consist of four (4) persons to be appointed by the President of the Association. Any vacancies shall be first filled by the current president and then by appointment of the Board of Directors.

Section 4-Duties: More detailed duties of all committees shall be defined by the board under separate cover.

Article IV
Officers

Section 1-Election, Removal, and Duties: The Board of Directors shall consist of a President, Vice-President, Treasurer, Secretary and chairpersons of the following committees: Social, Pool Operation, Swim team, Membership, Building and Grounds (Vice-President) and Fundraising. At the annual membership meeting, members will vote on a slate of individuals nominated by position to fill officer and chair vacancies as presented by the nominating committee. Directors shall appoint, if required, an Historian and a Swim Team Vice chairperson from the Regular or Associate membership. More detailed duties of all committee chairperson shall be defined by the board under separate cover.

No director shall be compensated for serving as a director of the Association. Directors may be reimbursed for expenses incurred on behalf of the Association.

Section 2-Specific Officers and Duties:

President-The President shall be the chief executive officer of the Association and shall preside at all meetings of the members and Board of Directors. The President, or Vice-President in the Presidents absence, shall countersign all checks, drafts, notes, and order of disbursement of the Association's Funds and with the advice of the Board of Directors shall appoint all standing and other committees subject to any limits set fourth in the By-Laws. In addition, the President shall perform such other duties as customarily appertain to the Office of President or as may be directed to perform by resolution of the Board of Directors not inconsistent with these By-Laws.

Vice-President-The Vice President shall have and exercise all the powers, authority, and duties of the President during the absence or disability of the President. The Vice-President shall assume the duties of the President upon death or resignation of the President. The Vice-President shall assume the duties of Building and Grounds. Building and Grounds will coordinate the annual Spring and Fall clean ups and maintains the grounds and pool house.

Treasurer-The Treasurer shall be the custodian of the funds of the Association and of its valuable papers, financial records and documents, subject to such limitations and control as may be imposed by the Board of Directors. The treasurer shall sign all checks, drafts, notes and other orders for disbursements of the funds of the Association and shall provide and maintain a full and complete record of all income and expenses of the Association, shall prepare and submit financial statement showing the condition of the Association of the close of business on the last day of the month preceding each meeting of the board of Directors. All regular billings and requests for payments shall be prepared and distributed by the Treasurer. The Treasurer shall be bonded for the faithful discharge of the duties of the office at the expense of the Association.

Secretary-The Secretary shall be custodian of the corporate seal. Affixing it to all written instruments and documents as required and shall sign or countersign all such instruments and documents as require the Secretary's signature. The Secretary shall conduct all official correspondence of the Association preserving and filing such incoming correspondence after is has been properly approved and reviewed by the President. All notices of Board of Director meetings or Association notices, rules and policies shall be issued through the Secretary and posted if necessary, at appropriate locations. The Secretary shall record the minutes of all Association meetings and all Board of director meetings.

Social- Prepares a calendar of social events for the year secures host/hostess for each event, ensures flyers are prepared and distributed for events. {Works to ensure the editor of the Windbag has information and notices of upcoming events}.

Pool Operations-Chairs lifeguard committee. Prepares pool for opening, insures all equipment is functional, pool area & water is clean, permit has been issued, maintains pool during swimming season, prepares pool for shut down to

insure safety of persons and equipment. These duties are coordinated with the Building and Grounds Chairperson to insure two persons are familiar with the entire process.

Swim Team-Attends G.P.S.A. {V.P.S.U.} meetings and submits a team roster by the deadline and new swimmers as necessary. Coordinates swim team sign up and collecting necessary fees. Serves on committee to hire coach and assistant coach. Arranges for swim meet personnel, concessions and any other needs. Obtains equipment, prepares information and distributes it to all persons who need such information, to include insertion in the Windbag. Organize banquet, obtains trophies and coordinates Swim team Fundraiser.

Membership-Promotes the association in order to enlist members. Prepares a "letter of information" to inform members and prospective members of our plans and their responsibilities. Contacts new residents during the active pool year. Receives and processes applications and dues in a timely manner. The chairperson shall preserve a record book containing a list of all resignation of members, officers, all membership forfeitures, suspensions, and expulsions, as well as an accurate list of all members' complete names, residences, business addresses, telephone numbers, email addresses, and dates of commencement of membership. Shall notify, in writing or by email, each applicant elected to membership and upon completion of each membership, shall transmit it each new member a membership card in such form as authorized and approved by the Board.

Fundraising-Works with Board to formulate an annual budget. Presents fundraising plans to Board for approval. Coordinates fundraising activities during the year. Coordinates Concession Stand for Swim meets.

Historian-The Historian shall chronicle through photographs and/or words the activities of the Association. The Historian shall be custodian of the Associations history. The historian may attend the Board meetings as a non-voting observer, shall serve for a term of two (2) years and maybe reappointed for additional terms at the discretion of the Board.

Swim Team Vice-Chairperson- shall assist the Swim Team Chairperson in matters of the swim team organization and mangament. May attend Board meetings as a non-voting observer. The Swim Team Vice shall serve a term of one year and may be appointed for additional terms as the discretion of the Board of Directors.

Article V
Membership

Section 1- Eligibility and Number: Any person may become a Regular member of the Wendwood Association.

Section 2-Membership Requirements: Upon arrival of an application for regular Membership by the Board of Directors, the applicant shall become a Regular member by purchasing a non-transferable, non-refundable membership certificate with payment of such initiation fee as the Board of Directors, in compliance with these By-Laws may establish. Regular membership may be

maintained by compliance with the rule, regulations and policies of the Association and prompt payment of annual dues established by the Board. Once a Regular membership has been established, the member may continue regular membership in the Association regardless of the location of their primary residence by continuing to pay dues, subject to provisions of Article II, Section 4. Payment of initiation fee may be in one lump sum or in annual payments. Annual payment of initiation fee shall be made in not more then five (5) years. The initiation fee will be considered paid in full when the member has made payments totaling the initiation fee at the time of joining. The Wendwood Association will not make any refund to those associates who have made payments greater than the current fee.

Section 3-Appilcation for Membership: All applications for regular membership must be submitted in writing or electronically to the Membership Committee for it review and recommendation. The Membership Committee shall exercise good judgment and accept or reject application in the name of the Board of Directors.

Section 4-Rights and Privileges of Membership: All regular members may own only one (1) non-transferable membership certificate and shall have full and equal rights, benefits and privileges. The Membership certificate shall entitle the member and all members of the family residing with them to use the facilities of the Association. The membership certificate shall also permit guest of the eligible member to use the facilities of the Association as prescribed in the rule and regulations adopted by the Association. No resident living within **1** mile radius of the Wendwood Pool may enter as a pay-per-day pool guest {or as a family guest (unless residing in the same house)} except for special events. The Association reserves the right to define the word *"guest"* and to limit the number of days the pool facility will be available for such guest.

Section 5-Inactive Member: A member shall be placed in inactive status by failure to pay annual dues.

Section 6-Late Membership: Subject to the above sanctions of Article V, applicants for late membership will be limited to those persons who apply for membership on or after July 1st but prior to September 30. Late membership will require payment of yearly dues on a pro rate basis from the date of membership approval until closing of the pool and similar pro rate of at least the minimum initiation fee required. Associate membership has the same rules. Neither regular nor associate late membership is to be for more than one (1) year.

Section 7-Annual Associate Membership: An annual associate membership shall be issued no membership certificate, have no voting rights and no automatic right of renewal; shall agree to abide by all rules and regulations of the Association; shall pay yearly dues to be determined annually by the Board of Directors. The Membership Committee shall exercise good judgment and accept or reject applications for associate membership in the name of the Board of Directors.

Section 8-Senior Regular Membership: An annual senior member shall be a person eligible regular membership who shall have reached their 60th birthday by June 30 of the current year. A senior member is entitled to all rights

and privileges they would be entitled to as a regular member. Senior members must meet eligibility criteria set forth in the applicable sections of Article V. Any new member meeting the criteria of senior membership must purchase a nontransferable membership certificate for the current initiation fee. Annual dues will be 50% of the current regular dues.

Section 9-Corporate Membership: Any business or corporation may become a member of the Association by payment of such fee as determined by the Board of directors. Corporate member will be issued a pass for the swim season which may be use during the season by employees of that business and their immediate family (spouse & children). Only one employee may use the pass at any given time. Corporate member will not be issued a membership certificate, have no voting rights at general membership meetings and no automatic renewal; shall abide by all rules and regulations of the Association.

Section 10-Social Membership: An annual social membership shall be issued no membership certificate, have no voting rights, no pool membership and no automatic right of renewal; shall agree to abide by all rules and regulations of the Association. The Membership Committee shall exercise good judgment and accept or reject applications for social membership in the name of the Board of Directors. Social Membership will be invited to all of the Association social gatherings throughout the year. Annual dues will be 50% of the current regular dues.

Section 11-Single Membership: A single membership provides pool use for one person for one pool season. An annual single membership shall be issued no membership certificate, have no voting rights, and no automatic right of renewal; shall agree to abide by all rules and regulations of the Association. The Membership Committee shall exercise good judgment and accept or reject applications for social membership in the name of the Board of Directors. Annual dues will be 50% of the current Associate Member dues.

Article VI
Certificates of Membership

Section 1-Form: Each member of the Association shall be entitled to a non-transferable, non-refundable certificate in such form as may be approved by the Board of directors, and each certificate shall be signed by the President and by the Secretary of the treasurer with the Corporate seal impressed thereon.

Article VII
Seal

Section 1-Seal: the seal of the Association shall be a flat faced circular die (of which there may be any number of counterparts) with the word “SEAL” and the name of the Association engrave thereon.

Article VIII
Membership Voting

Section 1-Voting: A membership certificate shall entitle said regular member to one (1) vote in the Association. Such vote shall be cast in person or by proxy at any and all membership meetings.

Article IX

Section 1-Liability: Members of the board of directors acting within the scope of the responsibilities as defined by the bylaws of the Wendwood Association, are not subject to liability beyond that of each member of the Association.

(Reserved)

Article X
Fiscal Year

Section 1-Fiscal Year: The fiscal year shall end on October 31 each year.

Article XI
Amendment of Article of Incorporation and By-Laws

Section 1-Amenments: Article and By-Law as may be amended by a vote of more then two-third (2/3) of the members in good standing, present and voting or by written proxy at the annual meeting or at a special meeting call by forty (40) percent of the members of by the Board. Notice of proposed amendment and its contents must be mailed ot given to all members at least thirty (30) days prior to annual meeting or special meeting.